

8.	24CV1538	CRISTA KORNAHRENS ET AL VS. PATTY DARLENE MILLAR
TERMINATING SANCTIONS AND MONETARY SANCTIONS		

The motion for terminating sanctions was filed on May 6, 2026. The motion argues Plaintiff has violated three discovery orders from February 26, 2026 and March 9, 2026. Plaintiff has failed to appear at the Case Management Conference without explanation and failed to appear after at an Order to Show Cause for failing to appear.

CCP §§ 2032.240(d) and 2032.410 authorize a court to impose sanctions under Chapter 7 of the Discovery Act, including issue, evidence, terminating or monetary sanctions, upon a Plaintiff who (1) fails to obey a court order compelling response and compliance to a demand for physical or mental examination (CCP §2032.240(d)) or (2) fails to submit to a physical or mental examination (CCP §2032.410).

The trial court should tailor the sanction for such conduct to “fit the crime.” (Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1293.) The court cannot impose sanctions as punishment; the choice of sanctions should not give the moving party more than it would have gotten had the discovery been responded to. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 992; Caryl Richards, Inc. v. Superior Court, 188 Cal.App.2d 300, 303.) Before issuing terminating sanctions, the court should usually grant lesser sanctions....” (Doppes, supra, 174 Cal.App.4th at 99.) It is only when a party persists in disobeying the court’s orders that the ultimate sanctions of dismissing the action or entering default judgment, etc. are justified. (See Deyo v. Kilbourne (1978) 84 Cal.App.3d 771.)

The court has previously sanctioned this party for failing to comply with discovery demands on three occasions and issued monetary sanctions. The Respondent has had months to comply and has failed to do so. The court has issued an order to show cause for failure to appear at which hearing Plaintiff again failed to appear. By all accounts Plaintiff has abandoned this action. The court has utilized lesser sanctions without any effect. The court has no lesser options left to utilize at this point other than grant the motion for terminating sanctions, dismiss the action with prejudice, and order sanctions in the amount of \$550 due within 10 days.

TENTATIVE RULING #8: THE MOTION FOR TERMINATING SANCTIONS IS GRANTED. THE ACTION IS DISMISSED WITH PREJUDICE. PLAINTIFF IS ORDERED TO PAY DEFENDANT \$550 IN 10 DAYS.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.

RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.